

SENATE BILL 2387

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-10-1403, is amended by deleting subsection (e) and substituting:

(e)

(1) A parent of a participating student who enrolls in a participating school that is a church-related school or home school, as those terms are defined in § 49-6-3001(c)(3)(A):

(A) Shall ensure that the participating student is annually administered all Tennessee comprehensive assessment program (TCAP) tests, or successor tests authorized by the state board of education, that are administered to a public school student in the same grade or same course subject as the participating student;

(B) In grade eleven (11), shall ensure that the student is administered the examination that is administered to public school students in grade eleven (11) pursuant to § 49-6-6001(b)(1); and

(C) In any of the grades kindergarten through three (K-3), shall ensure that the participating student is annually administered each of the three (3) Tennessee universal reading screeners, or universal reading screeners approved by the state board of education, as described in § 49-1-905(c), during each of the three (3) administration windows established by the department of education pursuant to § 49-1-905(c)(1).

(2) A participating student's results on the tests administered pursuant to this subsection (e) must be reported to the parent of the student.

(3) Students with disabilities who would have participated in the alternate assessment, as determined on the student's IEP, are exempt from the requirements in this subsection (e).

SECTION 2. Tennessee Code Annotated, Section 49-10-1404, is amended by adding the following as new subsection:

(d)

(1) As a condition of receiving an IEA pursuant to this part, a participating student who enrolls in a participating school that is a private school as defined in § 49-6-3001(c)(3)(A)(iii):

(A) Must be annually administered all Tennessee comprehensive assessment program (TCAP) tests, or successor tests authorized by the state board of education, that are administered to a public school student in the same grade or same course subject as the participating student;

(B) If the participating student is in grade eleven (11), then the participating student must be administered the examination that is administered to public school students in grade eleven (11) pursuant to § 49-6-6001(b)(1); and

(C) If the participating student is in any of the grades kindergarten through three (K-3), then the participating student must be annually administered each of the three (3) Tennessee universal reading screeners, or universal reading screeners approved by the state board of education, as described in § 49-1-905(c), during each of the three (3)

administration windows established by the department of education pursuant to § 49-1-905(c)(1).

(2) Each participating school that is a private school as defined in § 49-6-3001(c)(3)(A)(iii) and that enrolls a participating student shall annually administer the test or tests required in subdivision (d)(1) to the participating students enrolled in the participating school. Each participating school shall provide the results of the test or tests administered pursuant to subdivision (d)(1) to the participating student's parents.

(3) A participating student who would have participated in the alternate assessment, as determined on the student's IEP, is exempt from the requirements in this subsection (d).

SECTION 3. Tennessee Code Annotated, Section 49-10-1404, is amended by adding the following as new subsections:

(d)

(1) A participating school shall publish the school's lesson plans and syllabus for each class offered by the school, a current list of materials in the school's library collection, and the academic standards for each class offered by the school on the school's website.

(2) As used in this subsection (d):

(A) "Library collection" means the materials made available to students by the participating school, including materials made available to students as part of a course curriculum; and

(B) "Materials" means books, periodicals, newspapers, manuscripts, films, prints, documents, microfilm, discs, cassettes,

videotapes, video games, applications, and subscription content in any form.

(e) A participating school shall ensure that all educators of the participating school hold a valid license to teach in a public school that is issued by the state board of education.

(f) A participating school shall evaluate teachers in accordance with teacher evaluation requirements for public school teachers pursuant to § 49-1-302.

SECTION 4. Tennessee Code Annotated, Section 49-6-2607(e), is amended by adding the following as new subdivisions:

(6)

(A) Publish the school's lesson plans and syllabus for each class offered by the school, a current list of materials in the school's library collection, and the academic standards for each class offered by the school on the school's website; and

(B) As used in this subdivision (e)(6):

(i) "Library collection" means the materials made available to students by the participating school, including materials made available to students as part of a course curriculum; and

(ii) "Materials" means books, periodicals, newspapers, manuscripts, films, prints, documents, microfilm, discs, cassettes, videotapes, video games, applications, and subscription content in any form;

(7) Ensure that all educators of the participating school hold a valid license to teach in a public school that is issued by the state board of education; and

(8) Evaluate teachers in accordance with teacher evaluation requirements for public school teachers pursuant to § 49-1-302.

SECTION 5. Tennessee Code Annotated, Section 49-6-2606(a)(1), is amended by deleting the subdivision and substituting:

(1) As a condition of participating in the program:

(A) Participating students must be annually administered the Tennessee comprehensive assessment program (TCAP) tests, or successor tests authorized by the state board of education, that are administered to a public school student in the same grade or same course subject as the participating student;

(B) Participating students in grade eleven (11) must be administered the examination that is administered to public schools students in grade eleven (11) pursuant to § 49-6-6001(b)(1); and

(C) Participating students in kindergarten through grade three (K-3) must annually be administered each of the three (3) Tennessee universal reading screeners, or universal reading screeners approved by the state board of education, as described in § 49-1-905(c), during each of the three (3) administration windows established by the department of education pursuant to § 49-1-905(c)(1).

SECTION 6. Tennessee Code Annotated, Section 49-6-3507(a)(1), is amended by deleting the subdivision and substituting:

(1) As a condition of receiving a scholarship pursuant to this part:

(A) A recipient must be annually administered the Tennessee comprehensive assessment program (TCAP) tests, or successor tests authorized by the state board of education, that are administered to a public school student in the same grade or same course subject as the recipient;

(B) A recipient in grade eleven (11) must be administered the examination that is administered to public schools students in grade eleven (11) pursuant to § 49-6-6001(b)(1); and

(C) A recipient in kindergarten through grade three (K-3) must annually be administered each of the three (3) Tennessee universal reading screeners, or universal reading screeners approved by the state board of education, as described in § 49-1-905(c), during each of the three (3) administration windows established by the department of education pursuant to § 49-1-905(c)(1).

SECTION 7. Tennessee Code Annotated, Title 49, Chapter 6, Part 35, is amended by adding the following as a new section:

A private school that enrolls a recipient shall:

(1)

(A) Publish the school's lesson plans and syllabus for each class offered by the school, a current list of materials in the school's library collection, and the academic standards for each class offered by the school on the school's website; and

(B) As used in this subdivision (1):

(i) "Library collection" means the materials made available to students by the participating school, including materials made available to students as part of a course curriculum; and

(ii) "Materials" means books, periodicals, newspapers, manuscripts, films, prints, documents, microfilm, discs, cassettes, videotapes, video games, applications, and subscription content in any form;

(2) Ensure that all educators of the private school hold a valid license to teach in a public school that is issued by the state board of education; and

(3) Evaluate teachers in accordance with teacher evaluation requirements for public school teachers pursuant to § 49-1-302.

SECTION 8. Tennessee Code Annotated, Section 49-1-228, is amended by adding the following as a new subsection:

The department shall include participating schools, as defined in §§ 49-10-1402 and 49-6-2602, and private schools that enroll recipients, as those terms are defined in § 49-6-3502, in the school grading system developed pursuant to this section by annually assigning a letter grade to such schools.

SECTION 9. This act takes effect July 1, 2026, the public welfare requiring it.